

General requirements	NPOP-specific	EU-specific	COR-specific
Black text = applies across schemes	Blue text = NPOP-specific	Green text = EU-specific	Brown text = COR-specific

1. PURPOSE

The purpose of this procedure is to establish a responsible, effective, impartial, transparent and non-discriminatory system for receiving, registering, evaluating, investigating, deciding and communicating appeals received against GO4AGRI decisions.

2. SCOPE

This procedure applies to all written appeals received from direct customers / clients / operators against GO4AGRI decisions, including, but not limited to, refusal to accept an application, denial of certification, cancellation, withdrawal, revoke, suspension, scope reduction and other certification decisions. It applies across schemes operated by GO4AGRI, including NPOP, EU Regulation (EU) 2018/848 and its delegated / implementing acts, and the Canadian Organic Regime (COR).

3. RESPONSIBILITY

Responsibility for appeals and final resolution is allocated as follows:

- The Chief Executive Officer (CEO) is responsible for attending appeals until final resolution and corrective action, unless the CEO has a conflict of interest or was involved in the evaluation or certification decision being appealed.
- Where the CEO is involved in the evaluation or certification of the client concerned, the Quality Manager (QM) or Certification Manager (CM), provided they are not involved in the evaluation or certification, shall perform the relevant function instead of the CEO.
- Top management is responsible for appointing the person managing the appeal process and for constituting the appeals committee.
- The Quality Manager is typically appointed to manage the appeal process, verify completeness, acknowledge the appeal, maintain records and coordinate the investigation.
- The Appeals Committee is responsible for independent review, investigation, recommendation and final decision on accepted appeals.
- Certification staff may be requested to provide factual information or records but shall not influence the decision on the appeal when they are involved in the original decision.

4. DEFINITIONS

- Appeal: A formal request by a client / operator to reconsider an adverse decision made by GO4AGRI regarding certification status or related certification activities.
- Adverse decision: Any negative or restrictive decision, including refusal to accept an application, denial of certification, suspension, cancellation, revoke, withdrawal, scope reduction or similar decision.
- Appellant: The individual or organization submitting the appeal.
- Appeals Committee: A committee of at least three impartial members appointed to investigate and decide on accepted appeals.

5. GROUNDS FOR APPEAL

Any individual or organization may file an appeal for reasons including, but not limited to, the following:

- Refusal to accept an application.
- Denial of certification.
- Cancellation of certification.
- Certification decisions such as scope reduction, suspension, withdrawal, revoking or other adverse action.
- Any other GO4AGRI decision affecting certification status or rights under the applicable scheme.

6. RIGHT TO APPEAL AND SCHEME-SPECIFIC RIGHTS

The right to appeal shall be recognized and communicated to affected operators.

General requirements	NPOP-specific	EU-specific	COR-specific
An operator has the right to appeal against GO4AGRI decisions. Appeals must be in writing and supported by relevant records.	Appeals from clients under NPOP shall be handled under this procedure; if still dissatisfied, the appellant may complain to APEDA / accreditation body within 30 days of appeal decision.	As per EU 2017/625 Articles EU 2017/625 Article 138 and EU 2017/625 Article 7, the operator has the right to appeal against adverse action by GO4AGRI.	As per COR Operating Manual part C (C.2.4.2), the operator has the right to appeal against adverse action by GO4AGRI.

7. FORM AND TIMELINE FOR SUBMISSION OF APPEAL

Only written appeals shall be entertained.

- Appeals must be submitted in writing within thirty (30) days of the GO4AGRI decision being appealed.
- The appeal shall be accompanied by all necessary documents in support of the appeal.
- Appeals should be directed to the Quality Manager, unless otherwise specified by GO4AGRI.
- A copy of this procedure shall be provided to the client on request, and the appeal policy is publicly available on the website.

8. RECEIPT, ACKNOWLEDGEMENT AND REGISTRATION

Upon receipt of an appeal, GO4AGRI shall acknowledge, register and control the appeal as follows:

- The appeal shall be registered in the Appeal Register maintained for the purpose.
- The details regarding the appeal shall be recorded in FMO-12: Form for Appeal.
- Acknowledgement of receipt shall be given to the appellant either by providing a signed copy of the appeal or by replying to the appeal email.
- The appointed person shall verify the completeness of the submitted appeal and may request additional information where necessary.

9. PRELIMINARY UNDERSTANDING, ACCEPTANCE / REJECTION / DISALLOWANCE

After preliminary understanding of the nature and content of the appeal, GO4AGRI shall determine how the appeal will proceed.

- The Certification Committee / CEO would first attend to all written appeals received.
- Based on preliminary understanding, the CEO / Certification Committee / appointed person may decide whether the appeal is to be accepted or rejected.
- Based on the content, the appointed person may disallow the appeal, address the appeal directly, or refer the matter to the Advisory Board (AB).

An appeal may be considered invalid or may be disallowed where it is based on clear and well-defined requirements, including, but not limited to:

- Failure to comply with suspended status conditions.
- Failure to respond to non-conformity (NC) issues by the agreed deadlines.
- Submission of falsified documentation or information.

Decision	Condition	Action
Accept	Appeal is valid, timely and supported sufficiently for investigation	Proceed to assessor / committee review
Reject	Appeal is not accepted after preliminary understanding	Inform appellant with reasons
Disallow / Invalid	Appeal is based on clear unmet requirements or falsified / invalid basis	Close and inform appellant

10. APPOINTMENT OF RESPONSIBLE PERSON / ASSESSOR

If the appeal is accepted, GO4AGRI shall appoint a responsible person / assessor to study the appeal properly and submit a report.

- Upon receiving an appeal, top management will appoint a qualified individual, typically the Quality Manager, to manage the appeal process.
- If the appeal is accepted, an assessor is appointed to study the appeal properly and submit a report to the Appeals Committee.
- Impartiality shall be ensured throughout the appeal process.

11. FORMATION OF APPEALS COMMITTEE

An Appeals Committee shall be formed to accept appeals in accordance with the following controls:

- The Appeals Committee has been decided by the CEO.
- If the CEO is involved in evaluation or certification of that client, then the QM or CM, who are not involved in the evaluation or certification, will decide the three-member Appeals Committee.
- Once an appeal is accepted, top management will appoint an appeals Committee. This committee may consist of members of the Advisory Board or other certification team members not involved in the original inspection or certification process.
- The committee will have at least three members.
- The operator must confirm no objections to the appointed committee before proceeding.
- The operator can raise objections against any committee member if valid concerns, such as conflict of interest, exist.

12. IMPARTIALITY AND CONFLICT OF INTEREST REQUIREMENTS

The appeal process shall be carried out in a manner ensuring impartiality and independence.

- To ensure that there is no conflict of interest, personnel who have provided consultancy for a client, or been employed by a client, will not be used by GO4AGRI to review or approve the resolution of appeal for that client within two years following the end of the consultancy or employment.
- If the CEO is having any conflict of interest, then another person, such as the Quality Manager, Certification Manager or Inspection Manager, who is not having any conflict of interest, will perform the function of this procedure instead of the CEO.
- The person responsible for the decision being appealed shall not be there on the final decision committee.
- During this process, GO4AGRI shall ensure that the submission, investigation and decision on appeals do not lead to any discriminatory actions against the appellant.

13. INVESTIGATION OF THE APPEAL

The accepted appeal shall be investigated thoroughly on the basis of facts, records and applicable requirements.

- The appellant may be called to present the issue to the CEO / Appeals Committee if needed.
- The Appeals Committee investigates the issue by studying all related records and documents for review and comes out with its decision.
- The Appeals Committee may request relevant facts from certification staff to facilitate the appeal review.
- Relevant records may include inspection reports, certification decision reports, communications, sanction letters, contracts, standards and any supporting documents submitted by the appellant.
- Where appropriate, the matter may be referred to by the Advisory Board.

14. REVIEW OF DECISION AND FINALIZATION

The decision on the appeal shall be reviewed and finalized as follows:

- The decision will be reviewed by a person not involved in the certification.
- The decision and recommendations of the Appeals Committee are final.
- Necessary corrective actions will be taken based on the conclusions reached.

15. COMMUNICATION OF DECISION

GO4AGRI shall communicate the progress and final outcome of the appeal to the appellant and relevant internal personnel.

- The decision will be communicated to the appellant.
- Top management is responsible for informing all involved parties, including the client, certification team and auditors, about the appeal decision.
- The progress and outcome of the investigation will be communicated to the appellant as needed.
- Upon completion of the appeal process, the appellant will receive formal notification of the results.

16. APPEALS AGAINST SUSPENSION, CANCELLATION, WITHDRAWAL OR REVOKE

This procedure also applies to appeals arising from suspension, cancellation, withdrawal, revoke, termination or scope reduction decisions.

General requirements:

A suspension, withdrawal or cancellation may arise from complaint investigation, non-conformance, substantiated use of non-authorized substance, failure to implement corrective action, misuse of certificate/mark, violation of contract, failure to address complaints, or failure to allow audits. The affected operator has the right to appeal in writing within 30 days.

NPOP-specific:

If the appellant is not satisfied with the decision, the appellant may re-appeal to the Appeals Committee / CEO or may complain to APEDA / accreditation body within 30 days of the appeal decision.

EU-specific: (Organic Certified Clients)

- Where a competent authority has fully or partially withdrawn the delegation of certain official control tasks or certain tasks related to other official activities in accordance with point (b) of Article 33 of Regulation (EU) 2017/625, it shall decide whether any certificates issued by the control bodies concerned before the date of that partial or full withdrawal are to remain valid and shall inform the operators concerned of that decision.
- In case of irregularity or infringements observed by GO4AGRI, of its registered operator, it shall without delay inform EU Commission.
- When GO4AGRI finds any irregularity or infringements with regard to the products of the operator which was under the certification of the previous Certification Body, it shall inform the latter without delay
- GO4AGRI may receive a notification from the commission or its accreditation body regarding an established non-compliance for its client, or for any other relevant organization (for example, supplier of its certified client).

Reinstatement of cancelled (withdrawn/ revoked) certification as per EU 2018/848:

Any operator whose certificate is withdrawn will not be considered for recertification for at least next two years. They can reapply as a new applicant after the period of two years from the date of withdrawn, unless the recognition of the previous control authority or control body has been withdrawn by the commission and will be treated in the same way as of the cases for transfer of certification.

COR-specific:

- GO4AGRI shall suspend an organic certification as per subdivision C of part 13- [Safe Food for Canadians Regulations](#) as amended from time to time.
- GO4AGRI shall report to its CVB all suspensions and cancellations on the 25th of each month, in case such decisions are made, or shall be provided as defined by the CVB. All suspensions and cancellation reports shall include the name of the operator, the date of issue and the reason for the action.
- GO4AGRI shall reinstate suspended certification only after the CFIA has been notified and the date of the certification reinstatement is posted on the CFIA published list of suspended and cancelled organic certifications
- GO4AGRI shall not grant certification to an operator who had its certification previously cancelled and whose name appears on the CFIA published list of suspended and cancelled organic certifications unless the operator has submitted an application for certification of agricultural product to GO4AGRI as per section C.2, has completed the organic certification process and the GO4AGRI has received a confirmation from the CFIA that the date of the certification reinstatement is posted on the CFIA list.

- GO4AGRI shall submit to the CFIA a request for having the date of the certification reinstatement posted on the CFIA list of suspended and cancelled organic certifications within 5 working days from the certification decision
- The CFIA shall post the date of the certification reinstatement on the CFIA list of suspended and cancelled organic certifications and shall send confirmation to the GO4AGRI within 5 working days from the GO4AGRI request receipt.

Reinstatement procedure for COR certified client whose certification is cancelled:

A cancelled operator who wishes to be reinstated must apply as a new applicant as per section 344 of the SFCR. CFIA interprets the requirements as follows:

- The production unit (the applicant) must be under Go4Agri oversight for at least 12 consecutive months prior to the harvest of a product in order for it to be covered by the organic certificate (issued by Go4Agri at the end of the 12 months).
- An applicant cannot market products harvested during or prior to the start of the 12 months of oversight as organic.
- For the requirements of the standard to be met, the oversight is based on the time of harvest, and not the expected time of sale.

17. CONSEQUENCES WHERE APPEAL IS UPHELD

Where the appeal results in agreement with the objection, GO4AGRI shall take appropriate restorative and corrective action.

- If the appeal results in agreement with the objection, the non-conformity is withdrawn and previous actions may be reversed, for example by reinstating a suspended certification.
- GO4AGRI procedures and timelines for reinstating certifications will follow the guidelines outlined in **PRO-18a and PRO-18b**, as applicable.
- When an appeal is upheld, the Quality Manager and top management will determine if the original decision was overturned due to an internal failure by GO4AGRI. If so, appropriate corrective actions will be determined and implemented promptly.
- The effectiveness of these actions will be verified during internal audits or management reviews.

18. CONSEQUENCES WHERE APPEAL IS NOT UPHELD

Where the appeal is not upheld, the appellant shall be informed of the next available options.

- If the Appeals Committee disagrees with the objection and upholds the non-conformity, the operator will be informed.
- At this point, the operator can submit corrective action documentation within the original or extended timeframe (14 working days), or have the corrective action documentation reviewed through the normal process.
- If the appellant remains dissatisfied, escalation may be made to the applicable authority as allowed under the scheme and applicable rules.

19. PREVENTIVE ACTIONS AND MANAGEMENT REVIEW

The appointed individual shall ensure the appeal reaches a resolution and initiate preventive actions, if necessary.

- The conclusion and any preventive actions shall be reviewed in management meetings.
- Corrective and preventive actions arising from appeal handling shall be monitored for effectiveness.

20. ADVERSE ACTION

- Decisions of suspension or withdrawal / revoke / cancellation are communicated immediately to the client, and a notice is sent within not less than 2 working days.
- Notice of Suspension: GO4AGRI will provide a formal notice of suspension, outlining the reasons and the requirements to lift the suspension through email and/or issuing a letter to the certified operator.
- Timeframe for Resolution: The affected operator is given a specific timeframe to address the issues leading to the suspension and submit corrective actions. These corrective actions are subject to review by GO4AGRI before lifting the suspension.

- Potential Withdrawal or Revoke: If the client fails to resolve the issues within the given timeframe, the certification may be withdrawn or revoked.
- If certification is terminated / cancelled, suspended or withdrawn, by GO4AGRI or voluntarily withdrawn by the client, GO4AGRI makes necessary modifications to formal certification documents, public information and authorizations for use of marks, ensuring there is no indication that the product continues to be certified.
- If a scope of certification is reduced, GO4AGRI makes necessary modifications to formal certification documents, public information and authorizations for use of marks to ensure the reduced scope is clearly communicated.
- If certification is reinstated after suspension, GO4AGRI shall make all necessary modifications to formal certification documents, public information and authorizations for use of marks to reflect continued certification.

21. RECORDS AND PERTAINING REFERENCES

The following records and related procedures are relevant to this procedure and shall be maintained / used, as applicable:

- FMO-12: Form for Appeal
- Appeal Register / Appeals Log
- Acknowledgement of appeal receipt
- Supporting documents submitted by appellant
- Assessor / responsible person review notes
- Appeals Committee constitution / approval record
- Appeals Committee review notes and decision record
- Formal communication / decision letter to appellant
- Corrective action / preventive action records arising from appeal
- PRO-18a: Sanction Catalogue Procedure – COR / EU as referred in source document
- PRO-18b: Sanction Catalogue Procedure – EU 2018/848 as referred in source document
- Procedure for follow-up on positive chemical residue results as per Canadian Organic Regime